

GAHC010176002025



2025:GAU-AS:10430

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Crl.Rev.P./307/2025

DEEP RAJ GOGOI
S/O LT. JOY KANTA GOGOI
R/O BOGPORA GAON
P.S. AND P.O. GABHARUPATHAR
DIST. DIBRUGARH, ASSAM
PIN-786001.

VERSUS

THE STATE OF ASSAM AND ANR
REP. BY THE PP, ASSAM

2:SRI PRAHLAD NATH
SON OF SRI ANANDI NATH
R/O MARIPUR ANANDAPUR
P.S. PATTACHARKUCHI
P.O. NITYANANDA
DIST. BARPETA
ASSAM
PIN-781326

Advocate for the Petitioner : MR G PHUKAN, MS A GOGOI

Advocate for the Respondent : PP, ASSAM,

**BEFORE
HONOURABLE MR. JUSTICE MANISH CHOUDHURY**

ORDER

Date : 08.08.2025

Heard Mr. G. Phukan, learned counsel for the petitioner and Mr. R.R. Kaushik, learned Additional Public Prosecutor for the respondent State of Assam.

2. A First Information Report [FIR] was lodged before the Officer In-Charge, Dispur Police Station on 13.02.2009 by one Prahlad Nath reporting the death of his brother Abhinash Nath, who was working as a driver of the petitioner. It was alleged that Abhinash Nath fell from the terrace of a six-storied building and instantaneously succumbed to the injuries sustained by him. It was alleged that the petitioner was behind the death of the said deceased. The said FIR was registered as Dispur Police Station Case no. 168/2009 under Section 302, Indian Penal Code [IPC] and investigation ensued. On completion of investigation, the Investigating Officer [I.O.] of the case submitted a charge-sheet vide Charge-Sheet no. 471/2016 on 30.11.2016 finding sufficient incriminating materials against the petitioner for commission of the offence under Section 306, IPC.

3. From the materials on record it has emerged that on submission of the Charge-Sheet, the case has been registered as Police Report Case [PRC] no. 531 of 2020 and the case has been sent to the Court of learned Additional Chief Judicial Magistrate, Kamrup [Metro] at Guwahati [‘the Trial Court’, for short] for disposal. The Trial Court appeared to have taken cognizance of the offence vide an Order dated 20.06.2020 and issued process against the petitioner to secure his appearance in the proceedings of PRC Case no. 531 of 2020.

4. The instant criminal revision petition is preferred against an Order dated 25.06.2025.

5. For ready reference, the Order dated 25.06.2025 is extracted hereinbelow for its entirety :-

Accused is absent without step.

Perused the case record and it is seen that the accused had filed a petition

through his engaged counsel on 23.11.2021 alongwith order dated 02.08.2021 in Criminal Petition No. 389/2021 filed by him before Hon'ble Gauhati High Court against the order of cognizance of this court dated 20.06.2020.

I have seen order dated 02.08.2021 wherein Hon'ble High Court has been pleased to call for the scanned copy of CD and statement of witness recorded under section 164 CrPC in this case. However, no interim relief had been granted by Hon'ble High Court in order dated 02.08.2021. Accused did not appear after that nor filed any other order passed by Hon'ble High Court. We have checked the official website of the Hon'ble High Court and no subsequent order is found in the Criminal Petition.

Infact, case record reveals that the accused has never appeared in the court since service of summons and not taken any step showing cause of absence since 23.11.2021.

Since, there is no order of stay from Hon'ble High Court on the proceedings of the case and yet the accused has not taken any step after 23.11.2021, issue NBWA against the accused Deepraj Gogoi.

Fixing 14.08.2025 for report

6. From the contents of the Order, it can be noticed that during the period from 23.11.2021 to 25.06.2025, the petitioner did not even appear once before the Trial Court. This Court in Criminal Petition no. 389/2021 did not pass any interim order granting exemption to the petitioner from appearing before the Trial Court.

7. In Paragraph-10 of the instant criminal revision petition, the petitioner has urged the following ground seeking recall of the Non-Bailable Warrant of Arrest [NBWA] issued against the petitioner vide the Order dated 25.06.2025. For ready reference, the Paragraph-10 of the instant criminal revision petition is quoted below :-

10. That the petitioner begs to submit that, after receipt the certified copy of

the order dated 02.08.2021 the engaged counsel of the accused petitioner have submitted the said certified copy of the order dated 02.08.2021 before the Addl. Chief Judicial Magistrate, Kamrup (M), Guwahati and the Ld. Addl. Chief Judicial Magistrate, Kamrup(M), Guwahati also hopefully waiting for any decision of this Hon'ble High Court which has not yet come till date. And the accused petitioner also gapped the communication with the engaged advocate due to loss of mobile handset of his engaged counsel.

8. The grounds urged by the petitioner in the instant criminal revision petition found specious and not acceptable.

9. It is evident that the petitioner received summons from the Trial Court after the Trial Court took cognizance of the offence on 20.06.2020. It is apposite to refer to the provisions of Section 72 and Section 90 of the Bharatiya Nagarik Suraksha Sanhita, 2023 :-

72. Form of warrant of arrest and duration.-[1] Every warrant of arrest issued by a Court under this Sanhita shall be in writing, signed by the presiding officer of such Court and shall bear the seal of the Court.

[2] Every such warrant shall remain in force until it is cancelled by the Court which issued it, or until it is executed.

90. Issue of warrant in lieu of, or in addition to, summons.-A Court may, in any case in which it is empowered by this Sanhita to issue a summons for the appearance of any person, issue, after recording its reasons in writing, a warrant for his arrest-

[a] if, either before the issue of such summons, or after the issue of the same but before the time fixed for his appearance, the Court sees reason to believe that he has absconded or will not obey the summons; or

[b] if at such time he fails to appear and the summons is proved to have

been duly served in time to admit of his appearing in accordance therewith and no reasonable excuse is offered for such failure.

10. Having regard to the above provisions, this Court is of the view that the Trial Court was fully justified to issue NBWA against the petitioner on 25.06.2025 because of repeated failures on the part of the petitioner to appear before it during the period from 23.11.2021 to 25.06.2025.

11. As this petition lacks merit, the petition is liable to be dismissed. It is accordingly ordered.

JUDGE

Comparing Assistant